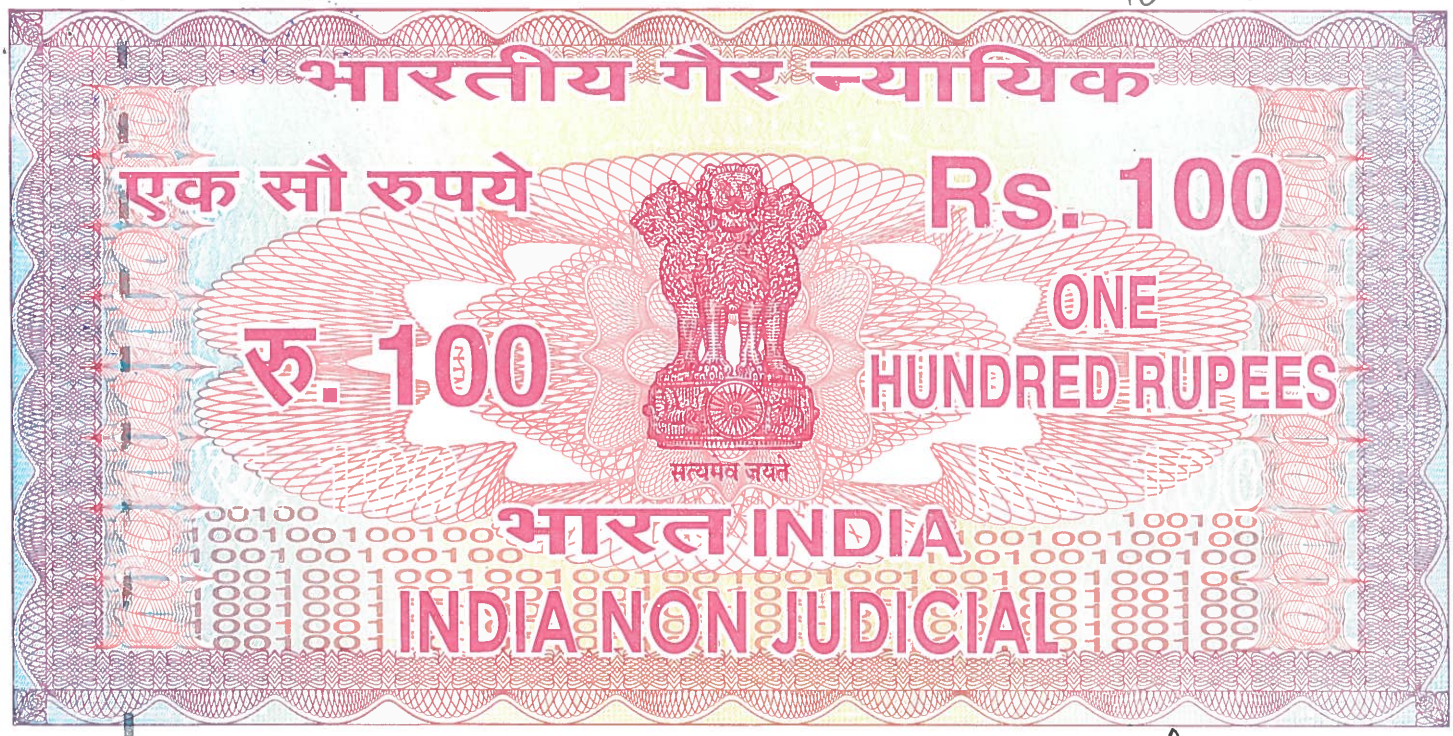
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తెలంగాణ तेलंगाना TELANGANA

Serial No. 3329, Dated:13-03-2021, Rs.100/-

SOLD TO. B. LAKSHMI NARAYANA

S/o. B. ANJANEYULU, R/o. Hyd.

For Whom: SAHITI INFRATEC VENTURES INDIA PVT.LTD

AG 477644

MOHD ABDUL AQIL
License Stamp Vendor
Lic No.16-03-018/2014,
Ren No.16-03-065/2020,
H.No.19-1-473/C, Doodh Bowli,
Kamatipuri, Hyderabad.

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding, hereinafter be referred to as MOU, is executed on this 09th day of April 2021 at Hyderabad, by

SAHITI INFRATEC VENTURES INDIA PRIVATE LIMITED, a Company registered under the Companies Act 2013, CIN: U45203TG2015PTC099984, having its Registered office at Plot No.1222, # 8-2-293/82/A/1222/F4, Fourth Floor, Road No.36, Jubilee Hills, Hyderabad 500 033, Telangana State, represented by Authorized Signatory, Mr. E.Bhaskar Naidu, S/o Sri.Pandurangaiah Naidu Eathamokkala, aged about 51 years, Residing at Plot No.1222, 4th Floor, Sahiti Sreshta, Road No.36, Jubilee Hills Check Post, Near Metro Railway Station, Jubilee Hills, Hyderabad, Telangana – 500 033.

Hereinafter referred to as Land Owner / Vendor / First party which term unless it be contrary to or repugnant to the context or meaning thereof, be deemed to mean and include duly authorised representatives, nominees, successors-in-interest, executors, administrators, assignees of FIRST PART.

For M/s SAHITI INFRATEC VENTURES INDIA PVT. LTD.

Authorised Signatory

AND

Sri. PC Phanindra Babu Pamdurthy, S/o. P.Chennakesava Rao, Aged about 26 years, R/o.4-27-8, Ithanagar Dangae Street, Tenali, Guntur, Andhra Pradesh – 522201.
(AADHAAR NO: 8529 4921 7395 & PAN : CCLPP9049P).

Hereinafter referred to as **Vendee / Second party** which term unless it be contrary to or repugnant to the context or meaning thereof, be deemed to mean and include the legal heirs, legal representatives, successors, executors, administrators, assignees of SECOND PARTY.

1. **WHEREAS,** the First party is the Land Owner in an extent of Ac.10.00 Guntas equivalent to 48400 Square Yards by virtue of Registered Sale Deed No(s).30665/2019 (Ac.2.00Gts), 36563/2019, (Ac.2.30 Gts), 36566/2019 (Ac.1.00 Gts), 44631/2019 (Ac.1.00Gts), 45823/2019 (Ac0.10Gts)12487/2020 (Ac.0.32Gts) ,12488/2020 (Ac,1.08Grs) and 12489/2020 (Ac.1.00) registered on the file of the SRO, Sangareddy and an extent of Ac.13.00Gts is under Agreement of Sale (AOS) which is valid and binding on the Parties thereto, hereinafter be referred to as Schedule A property more fully described in the Schedule A of this MOU and that the Parties of the First and Second parts have come together with a consensus as being narrated in the forthcoming paragraphs;

2. **WHEREAS**, the Parties to this MOU covenant each other that an extent of Undivided and Unspecified **31** Square yards of land from and out of the aforesaid land, hereinafter be referred to Schedule-B property more fully described in the Schedule under this MOU, was offered by the First party to sell to the Second party and the said offer was accepted by the Second party for a valuable sale consideration; and that the Second party shall exclusively convey the Schedule B property in favour of the First party for development, by way of a Registered Development Agreement cum General Power of Attorney, to construct a High-rise residential apartments complex, along with the undivided share of the land of the other Land owners including that of the First party and share the constructed areas as narrated in this MOU and shall be binding on the Parties thereto;

3. **WHEREAS,** the Parties hereto this MOU further covenant that the entire amount of transactions be governed by the covenants that are being conceded mutually as narrated hereunder to ensure smooth execution of the total transaction, without any hindrance from any corner to complete the construction and delivery of the constructed area to the Second party by the First party.

For M/s SAHITI INFRATEC VENTURES INDIA PVT. LTD.

Authorised Signatory

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NOW THIS MOU, WITNESSETH AS FOLLOWS, THAT:

1. The Second party hereby recognises that the First party is in construction business and is in the very advanced stage of acquiring other lands within the vicinity of the land covered under the aforesaid Registered Sale Deed.

2. In pursuant to the aforesaid offer and acceptance, the Vendee/Second party had paid an amount of **Rs.43,60,500/- (Rupees Forty Three Lakhs Sixty Thousand and Five Hundred Only)** towards the cost of the land in an extent of **31** Square yards and the receipt of the same is admitted by the First party; and that the First party shall execute and register a regular Sale Deed in favour of the Second party.

3. That the Second party shall execute and register a Development Agreement in favour of the First party, simultaneously, and to share the constructed areas by and between the Parties accordingly after getting the final approvals from the authorities concerned and allotment of his/her area will be mentioned in the DAGPA or supplementary agreement and both parties shall enjoy their respective constructed areas as their absolute properties;

4. The Second party hereby covenant and confirm with the First party, that the he/she shall never cause any hindrance and or create any encumbrance till the completion and delivery of the property as per the proposed DAGPA;

5. It is mutually agreed between the Parties, that the First party shall obtain all the necessary permissions for construction of the High-rise residential Apartments complex, at its own cost, and the time for construction of the said construction will take 03 years with grace period of 06 months from the date of signing of sanctioning of requisite permissions by the Competent authorities and that in the event of any delay, beyond the said construction period the First party shall pay to the Second party, as under

A. a sum of Rs.5.00 per Square feet per month for initial one (1) year period.

B. actual prevailing rent as on the date of such affect, subject to applicable IT TDS, in respect of his/her share as per the proposed DAGPA/ property,

6. The First party hereby confirms and covenant with the Second Party that,
   A. The position of the Tower and Flat will never change.
   B. All the construction compliances will be exclusive responsibility.
   C. The areas may change according to the governing rules and regulations of the competent authority with respect to the construction from time to time as prescribed thereon for the schedule property

For M/s SAHITI INFRATEC VENTURES INDIA PVT. LTD.

Authorised Signatory

7. The Second party hereby confirms and covenant with the First party that
   A. Has to pay all / or any applicable GST which is applicable and amended from time to time
   B. Has to pay all additional charges viz., corpus fund, maintenance, registration fees, stamp duty, user charges, miscellaneous charges etc.,

8. The Parties hereto covenant each other, that the First party is at liberty to raise such loans from third parties by mortgaging the development rights for project finance and its business needs; and also to raise the loans by the prospective purchasers of the Apartments and the Second party hereby convey its no-objection for the said purposes; and it's the absolute responsibility of the First party to discharge such debt, without reference to the Second party

9. The Second party on thorough deliberations with the First party hereby unequivocally confirm that Second party had understood the First party is with good and marketable Title and Ownership of the Schedule A property; and that in the event of any concern, doubt, clarification and or any other aspect about the project, the Second party shall always contact the designated person of the First party AND shall never resort to the defamatory / derogatory statements on the public forums / social media, whether directly or indirectly and or in conjunction with any third parties, without any valid and concrete proof, failing which the Second party hereby agrees to relinquish the sums that were paid to the First party and shall be liable for all such mala fide acts, and agrees always to defend the First party for all the bona fide acts done for the completion of the Project.

10. The Second party had understood with the information provided by the First party, that the First party is in process of acquiring of larger extents adjoining lands for development and construction of a multi-storied high rise apartments complex in larger extent of land, forming into a gated community with the requisite access roads, radial roads, and that the First party shall be at liberty to make such plans as per requirements of its business needs and the Second party here by understand without any doubt and having full knowledge of all the statutory compliances from time to time and that the Second party shall be entitled to the proposed constructed area/ property that is proposed to be constructed on the Schedule B property which is comprised of land under Schedule A property;

11. That parties are mutually concluded that if the Second party wish to exit after signing of this MOU the First party shall deduct a sum equivalent to 10% of the total cost of the land, and release the remaining balance of the monies to the Second party within a period of 30 days, under advance receipt, from the date of acceptance of the exit option exercised by the Second party, further in case the Second

For M/s SAHITI INFRATEC VENTURES INDIA PVT. LTD.

Authorised Signatory

Party wish to exist at any time during the pendency of the construction or work progress after getting the building permissions from the competent government authorities by deducting 18% as on the date and will be repay within 45 days from such event.

12. The Parties are executing this MOU in utmost good faith and shall maintain solidarity and confidentiality at all times to avoid unnecessary matters; and mutually that all the disputes arising out of and on account of this MOU are part thereof are subject to settled by mutual consent of the parties or exclusive jurisdiction of the Courts at Hyderabad only.

SCHEDULE A

All that piece and parcel of land in an extent of Ac. 23.00 Guntas, equivalent to 1,11,320 Square yards in Survey No.343/8,9,11, 12, and 343/13 of Ameenpur Village, Ameenpur Mandal, Sangareddy District, Telangana State, bounded by:

North :	Proposed 100 Ft wide Road
South:	Land in Sy.No.343/1
East :	Land in Sy.no.343/1
West :	Survey No.343/1 and 344

SCHEDULE B

All that piece and parcel of undivided and unspecified share of land in an extent of **31** Square yards from and out of Ac. 23.00 Guntas as mentioned in the Schedule A property with a construction of **1615 Sft in Tower No: 10, Flat No.2005 in 20th Floor** situated at Survey No.343/8,9 11,12, and 13 of Ameenpur Village, Ameenpur Mandal, Sangareddy District, Telangana State, bounded by:

North :	Neighbour's Land
South:	Neighbour's Land
East :	Common Corridor
West :	Neighbour's Land

IN WITNESS WHEROF, the parties hereto have set their respective hands to this Agreement of Sale with their free will and consent and without any coercion or undue influence on the day as mentioned above.

For M/s SAHITI INFRATEC VENTURES INDIA PVT. LTD.

Authorised Signatory

Vendee: Phanindra

Vendor

Witnesses: 1.

2.